

Mohd. Mubeen Alias Hazi Mohammad Mubeen v. State of U.P.

Allahabad High Court · Division Bench · 26 November 2019 · Writ-C No. 37725 of 2019 · Writ-C No. 37725 of 2019 · **Writ disposed of by consent; Executive Engineer to pass a fresh speaking final order after hearing objections; Section 127 appeal kept open; coercive action stayed for a limited period.**

HEADNOTE

Without examining alleged non-compliance with Clauses 6.8, 8.1 and 8.2 of the U.P. Electricity Supply Code, 2005, the Allahabad High Court disposed of a theft-assessment writ by consent. The consumers were directed to appear with objections before the Executive Engineer, who was to pass a fresh speaking final order; a Section 127 appeal remained available if they were still aggrieved; and coercive action was stayed for a limited period.

FACTUAL SUMMARY

The petitioners challenged a final assessment dated 8 April 2019 following a 19 February 2019 inspection and a 23 February 2019 provisional notice alleging theft of electricity. They sought quashing of the assessment, copies of the checking report and notice, restoration of supply to the second petitioner, and a hearing under Clauses 6.8, 8.1 and 8.2 of the U.P. Electricity Supply Code, 2005. The Department said theft had been detected and a notice to object had been issued; the petitioners alleged coercive action without a hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

consent-remand-for-fresh-speaking-final-assessment

HOLDING

A writ challenging a theft final assessment may, without a merits decision on Clauses 6.8, 8.1 or 8.2, be disposed of by consent by directing the consumer to appear with objections before the Executive Engineer for a fresh speaking final order, leaving any remaining grievance to an appeal under Section 127 of the Electricity Act, 2003. ¶ 4-5,8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE INSPECTION, PROVISIONAL NOTICE AND FINAL ASSESSMENT DATED 8 APRIL 2019 COMPLIED WITH CLAUSES 6.8, 8.1 AND 8.2 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, AND THE MERITS OF THE THEFT FINDING

The Court expressly declined to enter into the merits; the Executive Engineer is to decide afresh on his own after considering objections. ¶ 8

NOT DECIDED — RESTORATION OF SUPPLY TO THE SECOND PETITIONER AND SUPPLY OF THE CHECKING REPORT AND PROVISIONAL ASSESSMENT NOTICE

Prayed for in the writ; the consent order directed only a hearing, a fresh speaking order, and a limited stay of coercive action. ¶ 1